



CHAPTER xl.

An Act to confirm a Provisional Order under the Sea Fisheries Act 1868 relating to Oyster Mussel and Cockle Fisheries in and near Poole Harbour. [2nd July 1915.] A.D. 1915.

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Sea Fisheries Act 1868 :

31 & 32 Viet.
c. 45.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Sea Fisheries (Poole) Provisional Order Confirmation Act 1915. Short title.

A.D. 1915.

S C H E D U L E.

POOLE FISHERY ORDER 1915.

Order for the Regulation of an Oyster Mussel and Cockle Fishery in and near the Harbour of Poole in the County of Dorset and for the Establishment and Maintenance of a Several Oyster Mussel and Cockle Fishery in parts thereof.

Limits of fishery.

1. The description and limits of the Fishery comprised in this Order (herein-after called "the Fishery") such limits being more particularly delineated on a map sealed by the Board of Agriculture and Fisheries (herein-after called "the Board") and marked A 1021/1915 are the following namely:—

So much of Poole Harbour in the county of Dorset as lies below the line of ordinary high-water mark and to the seaward side of the following lines (a) a line along the south side of the culvert in the embankment of the London and South Western Railway Company between Parkstone Bay and Poole Park (b) a line along the south side of Creekmoor Bridge (c) a line along the east side of the footbridge across the Sherford River to the eastward of King's Bridge at or near the limit of ordinary tides (d) a line across the River Trent or Piddle along the eastern side of the roadbridge leading from Wareham to Wareham Station on the London and South Western Railway (e) a line across the River Frome along the eastern side of the roadbridge leading from Wareham to Stoborough (f) a line across Middlebere Lake true north from the western extremity of the loading wharf at Middlebere Quay (g) a line across Wych Lake true west from the seaward extremity at high-water mark of Neas or Nath Point (h) a line across Ower Lake true north-west from the landing place at Ower Passage (i) a line across Bran or Brand's Bay true north-west from Redhorn Quay and (j) a line along the line of groynes at high-water mark on the east side of Branksea or Brownsea Island together with so much of the sea adjacent to the said harbour as lies below high-water mark and within the following lines (1) a line drawn south 62 degrees east true from the wireless mast at the eastern end of the North Haven Hotel at Sandbanks for a distance of 900 yards (2) a line drawn from the southern

extremity of the line last above mentioned for a distance of 3,840 yards south 33 degrees east true (3) a line drawn from the southern extremity of the line last above mentioned for a distance of 840 yards south 58 degrees west true and (4) a line drawn from the western extremity of the line last above mentioned north 33 degrees west true until it reaches high-water mark on the shore at South Haven. A.D. 1915.

2. The local fisheries committee for the Southern Sea Fisheries District or for any sea fisheries district that may hereafter be created under the Sea Fisheries Regulation Act 1888 and any Act amending the same and that may include the whole or the greater part of the Fishery (herein-after called "the Grantees") shall be the Grantees of this Order.

3. Save as herein-after provided no person shall within the Fishery—
Restrictions on fishing for or taking oysters or mussels.

- (i) dredge fish for or take oysters during the period from the fifteenth day of May to the thirtieth day of September in any year both days inclusive or such other period as may be prescribed by regulation made under this Order;
- (ii) dredge fish for or take mussels during the period from the fifteenth day of May to the thirtieth day of September in any year both days inclusive or such other period as may be prescribed by regulation made under this Order;
- (iii) take any oyster which will pass through a circular ring of three inches in internal diameter or which is of less size than such as may be prescribed by regulation made under this Order.

4.—(1) Subject to the same regulations as may for the time being be in force with respect to the making of byelaws under the Sea Fisheries Regulation Acts 1888 to 1894 the Grantees without prejudice and in addition to their power to make byelaws under such last-mentioned Acts may from time to time make regulations to be observed within the whole or any specified part or parts of the Fishery and during the whole or any specified part or parts of the year for all or any of the following purposes :—
Power to make regulations.

- (i) For prohibiting or regulating the dredging fishing for or taking of oysters mussels and cockles or any of them;
- (ii) For varying any close season or minimum size prescribed by Article 3 of this Order;
- (iii) For determining the size at which it shall be illegal to take mussels;

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- (iv) For determining the marks to be attached or affixed to or painted or otherwise placed on vessels licensed under this Order or the sails or gear thereof when used within the Fishery Provided that no such regulation shall conflict with any provision of the Merchant Shipping Act 1894 or any regulation made thereunder;
- (v) For determining the marks to be placed on instruments used in fishing for or taking within the Fishery oysters mussels or cockles;
- (vi) For determining the size or description of vessels dredges and fishing instruments to be used within the Fishery in dredging fishing for or taking oysters mussels or cockles;
- (vii) For regulating generally the manner of dredging fishing for or taking within the Fishery oysters mussels or cockles;
- (viii) For prohibiting the taking of oysters or mussels which have been deposited in a place of deposit provided under this Order by any person other than the person by whom they were deposited or a person authorised by him;
- (ix) For prohibiting the deposit on the Fishery or requiring the destruction or regulating the disposal of such vermin as may be dredged or otherwise taken in dredging fishing for or taking oysters mussels or cockles;
- (x) For revoking altering or varying any regulations made or taking effect as if made under this Order.

(2) A regulation shall not be of any effect until confirmed by the Board but when so confirmed it shall be deemed to be and shall have effect as a regulation made by this Order Provided that subject to any rules prescribed by the Board any such regulation (a) shall be revoked or altered when and as required by the Board or (b) may at any time be revoked by the Board by a certificate in that behalf and shall thereupon cease to have effect.

(3) The production of a copy of any regulation or certificate purporting to be signed by a secretary or assistant secretary of the Board shall be conclusive evidence of the regulation and of the due making and confirmation thereof or of the issue of the certificate as the case may be.

(4) A copy of every regulation shall be furnished on application without charge to every person to whom a licence is issued under this Order.

Licences.

5.—(1) Save as herein-after provided no person shall dredge fish for or take oysters or mussels within the Fishery by means of any vessel or instrument for which tolls are leviable under this Order without the licence required by this Order.

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(2) Licences under this Order to dredge fish for or take oysters or mussels shall be issued by the Grantees to any person applying for the same and paying the tolls herein-after prescribed.

(3) A licence shall be available for use only by the person or persons (not exceeding two in number) specified therein.

(4) A licence shall be available for one fishing season only or for such part thereof as may be specified in the licence.

(5) A licence shall be available only for the use of the vessel or instrument or instruments specified therein respectively except that a licence to use a vessel other than a row boat shall authorise the crew thereof to use one unlicensed row boat for the purposes of such vessel so long as no dredge or other instrument is used from such row boat in fishing for or taking oysters or mussels at the same time as any dredge or instrument is used from the licensed vessel.

(6) A licence shall not authorise any person to dredge fish for or take oysters or mussels at any place in which he is not otherwise entitled to dredge fish for or take oysters or mussels or in contravention of any Act byelaw or regulation.

(7) Where a licence has been lost or accidentally destroyed a new licence in substitution therefor shall on application by the licensee be issued to him on payment to the Grantees of a toll of one shilling.

(8) Licences shall be in a form approved by the Board.

6. Save as otherwise herein provided there shall be paid in respect of licences under this Order and before they are issued the following tolls:—

	£	s.	d.
For each and every vessel other than a row boat there shall be paid in respect of every ton or part of a ton the vessel is capable of carrying the sum of	-	-	0 3 0
For each and every row boat the sum of	-	-	0 2 6
And for every dredge used in or from a row boat the sum of	-	-	0 7 6
And for every dredge used in or from a sailing boat the sum of	-	-	0 10 0
And for every dredge used in or from a boat propelled otherwise than by oars or sails	-	-	1 10 0

7.—(1) The Grantees may from time to time revise the tolls leviable under this Order either by increasing or diminishing the amount thereof or by varying the manner of fixing the toll in respect of the size or description of the vessel or instrument licensed or by providing for licences available for a part only of a fishing season.

Power to
revise tolls
with consent
of Board.

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A.D. 1915. (2) Any such revision or variation shall be made and may be proved in evidence in the same manner and subject to the same rules as if such revision or variation were a regulation made under this Order.

Exceptions. 8. The foregoing provisions of this Order shall not apply to any person dredging fishing for or taking oysters mussels or cockles for the purposes of reserves or otherwise for scientific purposes at any time by the written authority of the Board or of the Grantees under the hand of the clerk of the Grantees and in accordance with the conditions (if any) contained in such authority.

Power to appoint water-bailiffs. 9.—(1) The Grantees may from time to time appoint suspend or remove a water-bailiff or water-bailiffs.

(2) Every such water-bailiff shall until his appointment shall have been revoked have the following powers that is to say he may within the Fishery enter any vessel used for fishing therein examine the catches nets and fishing instruments and gear on or belonging to any such vessel seize oysters mussels or cockles illegally taken within the Fishery and do all other lawful acts for giving effect to the provisions of this Order and of Part III. of the Sea Fisheries Act 1868 as amended by any subsequent Act.

(3) For such purposes he shall be deemed to be a constable and shall have within the Fishery the same powers and privileges and be subject to the same liabilities as a constable duly appointed has and is subject to in his constablewick at common law or by statute.

(4) Where a water-bailiff has reasonable cause to suspect any person of having offended against any of the provisions of this Order or any regulation or byelaw made under this Order he may require such person to state correctly his christian name surname and place of abode and any person refusing or omitting when so required to state correctly such name surname and place of abode or wilfully continuing to offend after having been required by a water-bailiff to desist may be apprehended by any water-bailiff or by any person acting in the presence of and by the order of a water-bailiff and conveyed before a justice of the peace to be dealt with according to law.

(5) A water-bailiff may require any person dredging fishing for or taking oysters or mussels within the Fishery to produce his licence and any person when so required shall desist from fishing till the same is produced.

Places of deposit for cleansing purposes and rules for their use. 10.—(1) For the purpose of allowing oysters or mussels taken in the Fishery or any specified part or parts thereof and intended for consumption as human food to cleanse themselves and for the purpose of eliminating therefrom matter likely to be or to become dangerous to

public health the Grantees may from time to time with the approval of the Board provide or appoint within the Fishery suitable and convenient places or receptacles for the deposit of such oysters or mussels and public notice shall be given by the Grantees in such manner as the Board shall direct of the provision or appointment of any such place of deposit. A.D. 1915.

(2) From and after a date specified in a notice given by the Grantees with the approval of the Board and in such manner as the Board shall direct oysters and mussels (except mussels taken for immediate use as bait in fishing) shall not be taken within the Fishery or within the part or parts thereof specified in the notice for sale or consumption as human food except for the purpose of being forthwith deposited by the person or persons so taking the same at a place or in a receptacle provided or appointed by the Grantees for the purpose aforesaid and if any person shall take oysters or mussels within the Fishery or the specified part thereof for sale or consumption as human food and fail to deposit them at a place or in a receptacle so provided or appointed or in the manner so directed he shall be deemed guilty of the offence of taking oysters or mussels in contravention of the regulations imposed by this Order. The Board shall not approve of a notice being given under this provision unless and until they are satisfied that the Grantees have provided or appointed sufficient and suitable places for deposit of oysters or mussels taken from the Fishery or the part or parts thereof specified in the notice.

(3) Oysters or mussels so deposited as aforesaid at or in a provided or appointed place of deposit or receptacle shall not be taken therefrom until the expiration of such period as shall be from time to time prescribed by the Grantees with the approval of the Board and no oysters or mussels intended for sale or consumption as human food shall be taken from a provided or appointed place of deposit or receptacle without a certificate issued by a duly qualified officer of the Grantees in such form as the Grantees with the approval of the Board may prescribe.

11. The Grantees may from time to time with the written consent of the Board and as occasion may require—

(a) Set and mark out such portions of the Fishery as they may think necessary for experimental or scientific purposes in connexion with the propagation cultivation breeding fattening or gathering of oysters mussels and cockles or any of them or as places of deposit for the purposes of this Order and may use such portions (in this Order referred to as "reserves") for the purposes aforesaid; and

(b) Set and mark out such portions of the Fishery as they may think fit for the purpose of leasing such portions (in this

Power to
Grantees to
mark out
reserves and
layings.

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Order referred to as "layings") for breeding or fattening or cultivating oysters mussels and cockles or any of them or as places of deposit for the purposes of this Order.

Order for
creating
several
fishery.

12.—(1) Subject to the provisions of Article 13 hereof this Order confers on the Grantees a right of several oyster mussel and cockle fishery within such reserves and layings as may for the time being be set or marked out in accordance with the provisions of this Order :

Provided that—

(a) the right of several fishery shall not be exercised by the Grantees themselves within any laying; and

(b) notwithstanding section fifty-three of the Sea Fisheries Act 1868 the grant of a several fishery by this Order shall not except to such extent as the Board may by order direct affect the right of any person to fish for sea fish other than oysters mussels and cockles in any part of the low-water channel within the Fishery No such order shall be made except on the written application of the Grantees or unless such application has been advertised in accordance with the rules applicable to the making of regulations under this Order and the Board before making an order may cause such local inquiry as they think fit to be held with respect thereto.

(2) For the purposes of the Sea Fisheries Acts 1843 to 1893 the limits of the reserves and layings shall be the limits of the right of several oyster mussel and cockle fishery conferred by this Order.

Power to
lease layings.

13.—(1) The Grantees may by public auction to be held at Poole or by public tender or by private treaty lease any laying upon such terms for such period and subject to such conditions as may be agreed on with the lessee :

Provided that there shall not be leased to any one person or group of persons other than a registered co-operative society whether by means of one or more leases and whether in single layings or otherwise an area larger than five acres in extent without the approval of the Board :

Provided also that the Grantees shall be at liberty to refuse any bidding at any public auction or any tender without assigning any reason for such refusal.

(2) As soon as the person or group of persons to whom a laying is leased shall have executed an agreement embodying the terms and conditions of the lease there shall by virtue of the agreement be transferred to and vested in him or them as respects the laying the

right of several fishery as if he or they were the grantee or grantees of an order under the Sea Fisheries Acts 1843 to 1893 conferring on him or them a right of several oyster mussel and cockle fishery within the laying and as if any regulations restrictions terms and conditions comprised in the agreement were restrictions and conditions contained in such order. A.D. 1915.

(3) The execution of any such agreement shall except as may otherwise be provided thereby be taken to be a consent on behalf of the lessee to all byelaws under the Sea Fisheries Regulation Acts 1888 to 1894 for the time being in force within the limits of the laying.

(4) Any such agreement shall be in a form approved by the Board.

14.—(1) The limits of the Fishery and the limits of every reserve and laying shall be marked out by notice boards or otherwise in such manner as the Board may from time to time prescribe and any notice board marking out the limits of this Order may and shall if the Board so require contain a notice setting forth that the Grantees have power to lease layings under this Order and specifying the effect of a lease under this Order and the name and address of the person to whom applications for leases are to be made. Marking of limits.

(2) Any notice and notice boards or other marks prescribed by the Board shall be placed and maintained by the Grantees and in the event of any such notice or notice board or mark being removed obliterated or damaged it shall forthwith be replaced by them.

15. The Grantees or their lessees may construct and maintain such works as may be necessary for dividing any reserves or layings. Division of reserves and layings.

16. No buildings erections embankments or other works shall at any time be commenced or executed by the Grantees or their lessees within the limits of the Fishery without the previous approval in writing of the Board of Trade. Restriction on erecting buildings.

17. All moneys received by the Grantees under the provisions of this Order shall be applied and expended by them for all or any of the following purposes:— Application of receipts.

- (1) payment of the costs and expenses incidental to obtaining this Order;
- (2) placing and maintaining the notices notice boards and other marks above mentioned and in setting and marking out constructing and maintaining the divisions or boundaries of or between reserves and layings;
- (3) making and maintaining oyster mussel and cockle beds or either or any of them and in propagating cultivating breeding fattening or gathering oysters mussels or cockles for that purpose or for experimental purposes;

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(4) providing places of deposit or receptacles for the purposes of this Order ;

(5) payment of the expenses incidental to the management improvement maintenance and regulation of the Fishery and to the purposes of this Order.

Determina-
tion of ques-
tions.

18. In the event of any question arising as to the obligations of the Grantees under the foregoing Articles or the due observance or performance of any of the restrictions provisions or conditions contained in this Order the question shall be referred to the Board whose decision shall be accepted by all parties as final and conclusive.

Audit of
accounts.

19. The Grantees shall in every year render to the Board on such date as the Board shall fix such accounts of their income and expenditure under this Order and of all oysters mussels and cockles sold by them or their lessees and all other information required by the Board with reference to the Fishery in such form and made up to such date as the Board may from time to time require and shall allow the Board or any person appointed by them in that behalf to inspect the Fishery and all books accounts and other documents in the possession of the Grantees relative to the Fishery and shall give to such Board or person all such information relating thereto as they or he may require.

Duration of
Order.

20. Subject to the provisions of section 45 of the Sea Fisheries Act 1868 and of section 2 of the Oyster and Mussel Fisheries Orders Confirmation Act 1869 (No. 2) this Order shall continue in operation until the expiration of sixty years from the date of its confirmation by Act of Parliament and no longer.

Crownrights.

21. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Grantees or their lessees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Erection of
useful works
with Board
of Trade con-
sent.

22. Nothing contained in this Order shall prevent any person from constructing putting up or erecting with the consent of the Board of Trade (without being liable unless so required by the terms of such consent to pay any compensation in respect thereof to the grantees or lessees of a several fishery created under this Order) any works or

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erections for coast protection or of public or local utility within or partly within the limits of any reserve or laying Provided always that such works or erections are constructed put up or erected in accordance with such plans and sections and subject to such restrictions and regulations as previously to such works being commenced have been approved by the Board of Trade in writing under the hand of one of their secretaries or assistant secretaries. A.D. 1915.

23. The Board of Trade Arbitrations &c. Act 1874 applies for the purposes of this Order as if this Order were an Act of Parliament. Application of Act of 1874.

24. In this Order unless the context otherwise requires the following terms shall have the meanings herein-after respectively assigned to them :— Interpretation.

“ Vermin ” shall include five-fingers otherwise starfish dog-whelks otherwise tingles ascidians otherwise teddicks limpets spider-crabs or other organisms deleterious or injurious to oysters or mussels or oyster or mussel fisheries and any organism specified in any byelaw made under Article 4 (1) (ix) of this Order ;

“ Vessel ” shall include any ship or boat by whatever means propelled ;

“ Person ” shall include any body corporate or unincorporate.

25. The operation of the Poole Fishery Order 1885 is hereby terminated but any byelaw regulation certificate or licence made issued or granted under the provisions of that Order and in force at the date of the confirmation of this Order shall take effect as if it had been made issued or granted under the provisions of this Order but shall not in any other respect be altered or affected thereby. Saving as to regulations &c. under Poole Fishery Order 1885.

26. This Order may be cited as the Poole Fishery Order 1915. Short title.

Made by the Board of Agriculture and Fisheries under the Sea Fisheries Act 1868 and the Acts amending that Act this first day of April nineteen hundred and fifteen.

(L.S.) (Signed) HENRY G. MAURICE
Assistant Secretary.

Printed by EYRE and SPOTTISWOODE, LTD.,
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